



NIXON PEABODY LLP
ATTORNEYS AT LAW

NIXONPEABODY.COM
@NIXONPEABODYLLP

Eric C. Jeffrey
Counsel
ejeffery@nixonpeabody.com

Nixon Peabody LLP
799 9th Street NW
Suite 500
Washington, DC 20001-4501
202-585-8000

April 6, 2017

VIA FIRST CLASS MAIL

Ms. Rachel Dickon
Assistant Secretary of Federal Maritime Commission
800 North Capitol St.
Room 1046
Washington, D.C. 20573

Re: Docket No. 15-11 – Ovchinnikov v. Hitrinov

Dear Ms. Dickon:

Enclosed for filing in the above-captioned matter are an original true copy and five (5) additional copies of:

1. Respondents' Opposition to Complainants' Second Motion for Enlargement of Time to File Exceptions and For Other Relief

If you have any questions, please do not hesitate to contact me.

Best regards,

Eric Jeffrey

Enclosures

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

DOCKET NO. 15-11

IGOR OVCHINNIKOV, ET AL

v.

MICHAEL HITRINOV ET AL

Consolidated With

DOCKET NO. 1953(I)

KAIRAT NURGAZINOV, ET AL

v.

MICHAEL HITRINOV ET AL

**RESPONDENTS' OPPOSITION TO COMPLAINANTS' SECOND MOTION FOR
ENLARGEMENT OF TIME TO FILE EXCEPTIONS AND FOR OTHER RELIEF**

Pursuant to FMC Rules 69 and 71, Respondents hereby respond to Complainants' second request in less than a month for a substantial (and potentially endless) expansion of time to file Exceptions (or, they suggest, a Petition to Re-Open) in this matter. Respondents oppose this repeated request for the reasons that: (i) Counsel for Complainants' bare assertion of need for additional time is both unconvincing and contrary to his actions in multiple other proceedings, and (ii) experience shows that giving Counsel an inch invariably leads to him taking the proverbial mile. Granting this request, even in part, will simply engender a never-ending series of further such requests, as has been Counsel's modus operandi in other proceedings before the Commission and the courts. Finally, the record in this and other matters shows that Counsel has

issues of credibility and that it is unwise to accept his assertions without a very large grain of salt.

BACKGROUND

On March 9, 2017, the Presiding Officer issued an Initial Decision Granting Respondents' Motion for Judgment on the Pleadings, and accordingly dismissed the consolidated Complaints. Under the FMC's Rules, Complainants had until March 31, 2017 to file Exceptions to this Initial Decision.

The very next day (March 10), Counsel for the Complainants (Mr. Nussbaum) filed a motion seeking an indefinite stay of the proceedings, or else a prolonged, and potentially open-ended, extension of time to file Exceptions. Specifically, Counsel sought, as an alternative to the stay, to postpone the proceeding until he had at least 90 days to file (or not file) a purported Petition to Reopen the Proceedings and Remand the Matter to the Presiding Officer to take additional, unspecified, evidence. Exceptions would have been deferred even longer, until at least 22 days after the Commission ruled on the Petition. Counsel did not propose any proscription against seeking additional extensions, and the motion suggested that Mr. Nussbaum had just such further extensions in mind. Mr. Nussbaum thus sought an effectively open-ended delay of the proceedings. And all this was based on the mere possibility (we would say desperate hope) that some sort of evidence helpful to Complainants would somehow, someday be uncovered in two unrelated Federal cases.

Respondents filed a timely response to this unusual request, pointing out, inter alia, that it was entirely inefficient to defer the filing of Exceptions pending resolution of a potential Petition to Re-open that clearly did not meet the requirements of the FMC's Rule regarding re-opening, and that was otherwise pointless. In light of Mr. Nussbaum's alleged travel plans, however,

Respondents consented to an extension of Exceptions until 22 days after his return – i.e., April 17, 2017.¹ On March 20, 2017, the Commission denied Complainants’ Motion, except that it granted an extension of time until April 17 for Complainants to file Exceptions (and a corresponding new date of May 9, 2017 for Respondents to file their Reply to such Exceptions).

A mere eight days after this extension was granted, Mr. Nussbaum shifted course and devised yet another basis for extending the proceeding. In connection therewith, he emailed Respondents’ Counsel to advise that Complainants would be seeking “an additional sixteen day extension of time to file the Petition to Reopen the Proceedings and/or Exceptions, up to and including May 3, 2017 ... based upon a family matter that had arisen upon my return to New York, as well scheduling conflicts arising out of both the Passover and Easter holidays.”

Respondents’ Counsel asked Mr. Nussbaum whether, if Respondents were to consent to the proposed extension, he would agree to present it as the final extension for Complainants. Mr. Nussbaum provided the following remarkable response:

“[W]hile I do not intend to seek any further extensions, I cannot guarantee that a family emergency or medical emergency would not [check] require another application for an extension, at which time I would present the Secretary with documentation in support of such request for *in camera* review.”

See March 28, 2017 email thread, a copy of which is attached as Exhibit 1.

On March 31, 2017, Mr. Nussbaum filed a *Second* Motion for an Enlargement of Time, proffering as reason therefor the vague and generalized assertion that “a family matter arose which now requires [his] personal involvement for the next three weeks.” Mr. Nussbaum also

¹ Although Respondents would normally accept without demur an opposing counsel’s assertion of travel plans, Mr. Nussbaum has been far less than forthright with respect to his physical whereabouts in this proceeding, as reflected in the Ethical Exceptions pending in this docket.

noted that Passover this year runs from April 10 through April 18 and that Easter is celebrated on Sunday, April 16.

With his March 28, 2017 email, Mr. Nussbaum effectively admitted that this *Second* request for an enlargement of time may well be just the opening shot in a further series of requests, based on family or medical emergencies (or other purported excuses) yet to come.

Thus, as Respondents predicted,² having been denied the stay or 90-day (plus) delay he originally sought, Mr. Nussbaum decided to secure effectively the same relief by seeking multiple smaller extensions on whatever basis he may be required to conjure.

ARGUMENT

Counsel for Complainants offers only brief, skeletal, reasons for the requested extension. None show the requisite “good cause” for granting him yet more additional time to prepare a pleading he should be able to write in his sleep (or at least within the seven days the Commission provided him in *Crocus Investments, LLC v. Marine Transport Logistics, Inc.*, Docket No. 15-04 (Memorandum Opinion and Order, served March 6, 2017)).

As an initial matter, we note from the use of “and/or” that Mr. Nussbaum apparently believes (or would like to believe) that Complainants are entitled to further postpone Exceptions by filing the previously-proposed Petition to Re-Open. That is directly contrary to the Commission’s March 20 Order, and so would need to be addressed in a Petition for Reconsideration meeting the procedural and substantive requirements of the Commission’s Rules. We ask the Commission to make that point clear, to avoid further unnecessary motions.

² See footnote 13 to Respondents’ Opposition to Complainants’ Motion for an Enlargement of Time to File Exceptions and for Other Relief, which suggested that only a one-time extension be granted because Mr. Nussbaum has “displayed a marked propensity toward making long series of requests for extensions, based on a laundry list of excuses, such as long-term medical problems, computer malfunctions, breakdowns in communications with his clients. etc.”

Mr. Nussbaum refers, without further explanation, to the upcoming “holidays.” But Mr. Nussbaum has effectively been allowed 28 days in which to prepare Exceptions – 6 days before his departure³ and 22 days after his return. Moreover, even Orthodox Jews refrain from working only on the first two and last two days of Passover, *i.e.* April 10 and 11, and April 17 and 18. And Easter, apart from not being a Jewish holiday, always falls on a Sunday. Thus, these holidays deprive Mr. Nussbaum of at most three business days to prepare the Exceptions. In any event, as noted below, Mr. Nussbaum is apparently working on Passover since he has recently confirmed his attendance at a court conference to be held on April 11. Given that the Exceptions will largely replicate multiple prior briefs on the issue of subject matter jurisdiction, the existing deadline would not appear to put much strain on Mr. Nussbaum’s ability to file Exceptions.

Mr. Nussbaum also refers to an alleged family matter he claims will occupy him for the next three weeks. Any such assertion is wholly belied by the fact that Mr. Nussbaum continues to participate actively in numerous other proceedings where he has neither sought an extension nor asserted any unavailability due to “family matters” or religious observance of holidays. *E.g.*:

- On March 30, 2017, Mr. Nussbaum participated in person in a lengthy settlement conference on behalf of the defendants in the case captioned *World Express & Connection, Inc. v. Crocus Investments, LLC et al*, 15-cv-8126-KM-MAH pending in the District of New Jersey.
- On April 3, 2017, Mr. Nussbaum filed a notice of appeal from the District Court’s decision ruling against his clients in the case captioned *UAB Pamario Dvaras et al. v. DKP Wood Railings & Stairs Inc. et al*, 14-cv-4495-KSH-CLW pending in the District of New Jersey. *See* copy of Notice of Appeal attached as Exhibit 2.
- Also on April 3, 2017, Mr. Nussbaum filed a letter in the case captioned *Concord American Autosales, Inc. v. USA Intercargo LLC et al*, 15-cv-487-SRC-CLW pending in the District of New Jersey, with respect to a conference scheduled for April 11, 2017 – the second day of Passover. Mr. Nussbaum did not raise the fact

³ Mr. Nussbaum could and should have been working on the Exceptions while his motion for extension/stay was pending, rather than just granting himself six free days.

that the Court had scheduled that conference during Passover or advise the Court of his recently arisen “family matters”; instead he confirmed his attendance (over the protest of his client who incidentally has accused Mr. Nussbaum of acting contrary to his interests in that case). *See* copy of Mr. Nussbaum’s April 3, 2017 letter in the *Concord* case.

- Mr. Nussbaum is scheduled to participate in an initial conference on behalf of his client Goodzone TV today (April 6) in a case captioned *Joint Stock Company Channel One Russia Worldwide et al v. Infomir LLC et al.*, 16-cv-1318-GBD-BCM, pending in the Southern District of New York.

Finally, while reluctant to do so, we must point out that Counsel for Complainants has credibility issues relating to requests for extension (and more generally). As discussed in Respondents’ Response to Counsel’s initial attempt to prolong the proceeding, the Commission has recently found that Mr. Nussbaum abused the extension process as a mechanism for delaying the need to file Exceptions. *Crocus Investments, LLC v. Marine Transport Logistics, Inc.*, Docket No. 15-04 (Memorandum Opinion and Order, served March 6, 2017). Likewise, in *Baltic Auto Shipping, Inc. v. Hitrinov et al.*, Docket No. 14-16, Mr. Nussbaum sought and obtained a 40-day extension of time to file Exceptions -- citing Jewish holidays and the press of his other business matters, only to then seek a further 60-day extension on the basis of an undisclosed “medical condition.”

Moreover, as discussed in the pending Ethical Exceptions, the record in this case includes a prior (and successful) attempt by Mr. Nussbaum to secure an extension on apparent false pretenses.⁴ Similarly, in October of 2016, Mr. Nussbaum moved for leave to withdraw as counsel in *Joman v. Lavinstar America, Inc. et al*, 15-cv-2799-KM-JBC pending in the District

⁴ *See* Motion of Respondents’ Counsel for an Order to Show Cause Why the Commission should not Revoke Complainants’ Counsel’s Privilege of Practicing Before the Commission docketed on September 7, 2016, at pp. 5-6, and pending Exceptions thereto, detailing how Mr. Nussbaum misrepresented to the Presiding Officer that he would be “traveling overseas in order to attend to a family matter” through August 11, 2016, when in fact, he had returned to the office as early as July 26, 2016 as confirmed by counsel in other matters in which he was actively participating.

of New Jersey, on the basis that he had developed a chronic “vision related issue” that made it difficult for him to practice law. Strangely, however, this supposedly severe vision problem did not lead Mr. Nussbaum to modify his activities or raise these purported medical issues in his other cases, including this very proceeding.

Respondents fully expect that, if the Commission takes up Mr. Nussbaum’s offer to provide “further documentation for *in camera* review,” Mr. Nussbaum will creatively “discover” or “find” support for his request.⁵ Given the history in this case, and others, there is no need for the Commission to prolong the proceeding even long enough to request and consider such phantom support. Instead, the Commission should keep the proceeding on track by summarily denying Counsel’s repeat request.

Respectfully submitted,



Eric Jeffrey

Nixon Peabody LLP

799 9th Street, N.W., Suite 500

Washington, D.C. 20001

202-585-8000

⁵ As explained at length in the Motion and Exceptions cited in n. 4, above, Mr. Nussbaum has already introduced to this proceeding, and continues to rely upon, certain documents that are obvious fabrications.

Exhibit 1

From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Date: March 28, 2017 at 5:31:19 PM EDT
To: "Jeffrey, Eric" <ejeffrey@nixonpeabody.com>
Subject: Re: Docket no. 15-11 & 1953(I)

Dear Mr. Jeffrey,

With respect to your first question, while I do not intend to seek any further extensions, I cannot guarantee that a family emergency or medical emergency would require another application for an extension, at which time I would present the Secretary with documentation in support of such request for *in camera* review.

With respect to your second question, I ask (without kidding) if this is a hypothetical question in that it is unclear as to whether or not you will remain as counsel after April 17, 2017. The issue is to whom the extension of time for a response to Exceptions would be given. Would it be you, Mr. Doyle, Mr. Werner, or someone else?

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
<http://www.nussbaumlawfirm.com/>

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On Tue, Mar 28, 2017 at 4:52 PM, Jeffrey, Eric <ejeffrey@nixonpeabody.com> wrote:

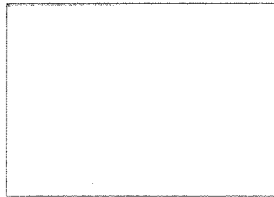
Dear Mr. Nussbaum

Two questions and a comment.

1. If Respondents were to consent to the proposed extension, would you agree to present it as the final extension for Complainants (on this filing)?
2. Would you agree to consent being contingent upon an extension for Respondents' Reply? I will be out of town (mostly out of the country), for most of the middle of May, so would need until around June 21 to respond, before I leave town again.

Best regards,

Eric



Eric C Jeffrey
Counsel
ejeffrey@nixonpeabody.com
T 202-585-8215 | C 703-
919-3374 | F 855-782-6662
Nixon Peabody LLP | 799
9th Street NW | Suite 500 |
Washington, DC 20001-
4501
nixonpeabody.com |
[@NixonPeabodyLLP](#)

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From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]
Sent: Tuesday, March 28, 2017 4:33 PM
To: Jeffrey, Eric
Subject: Docket no. 15-11 & 1953(I)

Dear Mr. Jeffrey,

Please be advised that I intend to seek an additional sixteen day extension of time to file the Petition to Reopen the Proceedings and/or Exceptions, up to and including May 3, 2017.

The application is based upon a family matter that had arisen upon my return to New York, as well scheduling conflicts arising out of both the Passover and Easter holidays.

I will be filing the motion tomorrow morning and ask that you kindly note your consent or objection to same at your earliest convenience.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Tel: [888-426-4370](tel:888-426-4370)
Fax: [347-572-0439](tel:347-572-0439)

<http://www.nussbaumlawfirm.com/>

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Exhibit 2



Marcus Nussbaum <marcus.nussbaum@gmail.com>

Activity in Case 2:15-cv-00487-SRC-CLW CONCORD AMERICAN AUTOSALES, INC. v. USA INTERCARGO LLC. et al Order

Concord American Autosales, Inc <caa2002inc@gmail.com>
To: Marcus Nussbaum <marcus.nussbaum@gmail.com>

Sun, Apr 2, 2017 at 10:20 PM

As I see in the court order, you are not required to be at this teleconference, the judge specified who has to be present for this phone call, and I am the only one. I will also figure out a translator, do not worry about this. In the meantime, you can present the court my cellphone number (647-892-2886) and they can contact me five minutes prior to the time specified by the courts. Also, as I need to prepare for this teleconference, present me the transcripts which you wish to redact, allegedly in order to defend my interests, before I send the next complaint to the Bar, the deadline I'm giving you is Tuesday by the end of the day.

On Fri, Mar 31, 2017 at 2:57 PM, Marcus Nussbaum <marcus.nussbaum@gmail.com> wrote:
This is my second request that you please advise who your translator is going to be.

Additionally, please provide a number where you can be reached and I will call you 5 minutes prior to the conference.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
<http://www.nussbaumlawfirm.com/>

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----- Forwarded message -----

From: **Marcus Nussbaum** <marcus.nussbaum@gmail.com>
Date: Thu, Mar 30, 2017 at 12:43 PM
Subject: Fwd: Activity in Case 2:15-cv-00487-SRC-CLW CONCORD AMERICAN AUTOSALES, INC. v. USA INTERCARGO LLC. et al Order
To: "Concord American Autosales, Inc" <caa2002inc@gmail.com>

See below and please advise who your translator is going to be.

----- Forwarded message -----

From: <njdefiling@njdcourts.gov>
Date: Mar 30, 2017 11:06 AM
Subject: Activity in Case 2:15-cv-00487-SRC-CLW CONCORD AMERICAN AUTOSALES, INC. v. USA INTERCARGO LLC. et al Order
To: <njdefiling@njdcourts.gov>

Cc:

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U.S. District Court

District of New Jersey [LIVE]

Notice of Electronic Filing

The following transaction was entered on 3/30/2017 at 11:05 AM EDT and filed on 3/30/2017

Case Name: CONCORD AMERICAN AUTOSALES, INC. v. USA INTERCARGO LLC. et al

Case Number: 2:15-cv-00487-SRC-CLW

Filer:

WARNING: CASE CLOSED on 01/17/2017

Document Number: 88(No document attached)

Docket Text:

TEXT ORDER: The Court will hold a telephone conference, to be initiated by Plaintiff, on 4/11/17 at 1 PM. Mr. Tcherny and an appropriate translator shall be present on the call. So Ordered by Magistrate Judge Cathy L. Waldor on 3/30/17. (tjg,)

2:15-cv-00487-SRC-CLW Notice has been electronically mailed to:

MARCUS AURELIUS NUSSBAUM marcus.nussbaum@gmail.com

WILLIAM E. LAKIS wlakis@lakis-law.com, wlakis@optonline.net

2:15-cv-00487-SRC-CLW Notice will not be electronically mailed to::

Thanks & Regards,

Gennady Tcherny
President

Concord American Autosales, Inc
cell: 647.892.AUTO (2886)
tel: 1.866.504.8266
fax: 1.866.565.7329
email: caa2002inc@gmail.com
website: www.usaru.com

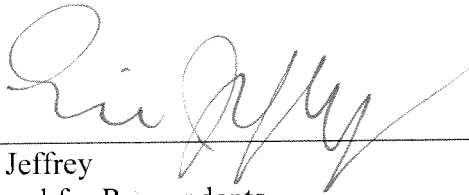
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing Respondents' Opposition to Complainants' Second Motion for Enlargement of Time to File Exceptions and For Other Relief by U.S. Mail, First-Class, Postage Prepaid and E-Mail to the following:

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Seth M. Katz, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Date: April 6, 2017



Eric Jeffrey
Counsel for Respondents